

CV-23-007501 WELLS FARGO BANK vs LOPEZ, EDGAR PEREZ – Plaintiff's Motion to Vacate Dismissal Under C.C.P. 664.6 & Enter Judgment Pursuant to Stipulation – GRANTED in part and DENIED in part, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Plaintiff's unopposed motion to enforce the parties' written settlement pursuant to Code of Civil Procedure section 664.6 is GRANTED as to the unpaid settlement balance. The parties executed a written stipulation authorizing entry of judgment in the event of default, and the Court retained jurisdiction to enforce the settlement. Plaintiff has submitted a declaration establishing that Defendant defaulted under the settlement agreement and that \$3,000 remains unpaid. No opposition has been filed. The Court finds that Plaintiff is entitled to judgment in the principal amount of \$3,000.00. Costs Plaintiff also seeks an award of \$300 in costs. However, Plaintiff did not file a memorandum of costs as required by California Rules of Court, rule 3.1700(a)(1). Therefore, the Court cannot ascertain whether the costs requested are proper and recoverable pursuant to Code of Civil Procedure section 1033.5 and Local Rule 3.13. (Cf. Judicial Council form CIV-100, "Request for Entry of Default" at Item 7 [requiring a memorandum of costs if a money judgment is requested].)

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: e732d16c37baab2a8e478297cea466195e11ff22f2c9d73bd24622f696bc53ae

CV-23-007501 – WELLS FARGO BANK vs LOPEZ, EDGAR PEREZ – Plaintiff's Motion to Vacate Dismissal Under C.C.P. 664.6 & Enter Judgment Pursuant to Stipulation – GRANTED in part and DENIED in part, and unopposed.

Plaintiff's unopposed motion to enforce the parties' written settlement pursuant to Code of Civil Procedure section 664.6 is GRANTED as to the unpaid settlement balance. The parties executed a written stipulation authorizing entry of judgment in the event of default, and the Court retained jurisdiction to enforce the settlement. Plaintiff has submitted a declaration establishing that Defendant defaulted under the settlement agreement and that \$3,000 remains unpaid. No opposition has been filed.

The Court finds that Plaintiff is entitled to judgment in the principal amount of \$3,000.00.

Costs

Plaintiff also seeks an award of \$300 in costs. However, Plaintiff did not file a memorandum of costs as required by California Rules of Court, rule 3.1700(a)(1). Therefore, the Court cannot ascertain whether the costs requested are proper and recoverable pursuant to Code of Civil Procedure section 1033.5 and Local Rule 3.13. (Cf. Judicial Council form CIV-100, "Request for Entry of Default" at Item 7 [requiring a memorandum of costs if a money judgment is requested].)